

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio ex rel. Dave Yost, Ohio	:	
Attorney General,	:	
	:	
Plaintiff,	:	Case No. 20IN06-149
	:	
vs.	:	Visiting Judge James L. Kimbler
	:	
The Landings Property Owners Association,	:	
Inc., <i>et al.</i> ,	:	
	:	
Defendants.	:	

**MULLINS BROS.’ MEMORANDUM IN OPPOSITION TO THE LONG DEFENDANTS’
SUPPLEMENTAL MEMORANDUM REGARDING
MOTIONS FOR SUMMARY JUDGMENT**

I. Introduction

On April 19, this Court stated that an argument presented by the Long Defendants in their Supplemental Memorandum Regarding Motions for Summary Judgment “basically amounts to the bringing of a new argument in support of their motion for summary judgment pursuant to Civ.R. 56.” (4/19/2024 Journal Entry at 4) The Court explained, “Essentially the Long Defendants are arguing that this Court should set aside the transfer of real estate from Mullins Brothers to The Landings Property Owners Association, Inc., and declare that Mullins Brothers is still the owner of the parcels on which the dam and lake are located.” (*Id.*) The Court must deny the Long Defendants’ belated request for summary judgment for two simple reasons: (1) the Long Defendants did not cite any law supporting their argument and thus failed to meet their burden under Civ.R. 56, and (2) many of the Long Defendants’ factual assertions are contradicted by the evidence. With no supporting law or evidence, the Court must deny the Long Defendants’ request.

II. The Long Defendants did not meet their burden under Civ.R. 56

“On a motion for summary judgment, the moving party bears the initial burden of demonstrating that there is no genuine issue of material fact and that it is entitled to judgment as a matter of law. If the moving party fails to meet this burden, summary judgment is not appropriate[.]” *Travelers Prop. Cas. Corp. v. Chiquita Brands Intl., Inc.*, 2024-Ohio-1775, ¶ 19 (1st Dist.), citing *Dresher v. Burt*, 75 Ohio St.3d 280, 292-293 (1996). The Long Defendants have not met their initial burden here. In its April 19 entry, this Court recognized that in making their new argument, the Long Defendants made “no reference to either case law or statutory law that would guide th[e] Court in the resolution of the issue raised.” (4/19/2024 Journal Entry at 2–3) The Court must deny the Long Defendants’ motion for this reason alone. Civ.R. 56 imposes a burden on the moving party to provide legal authority supporting its claim. *See* Civ.R. 56(E) (requiring the moving party to show that it “is entitled to judgment as a matter of law”). Civ.R. 56 does not allow a party to assert a bald theory—without any legal support—and then require the nonmoving party to prove that the theory is wrong.

III. Evidence contradicts the Long Defendants’ argument

Earlier briefing on the parties’ motions for summary judgment shows that The Landings Property Owners Association, Inc. is the homeowners association intended by the restrictive covenants and was a functional homeowners association that had members, collected dues, and held meetings. There is no dispute that articles of incorporation were filed for The Landings Property Owners Association, Inc. on April 5, 2005, and that property owners became members as a matter of law upon purchasing property in the development. The property at issue was transferred to The Landings Property Owners Association via quitclaim deed on August 1, 2007.

At the time, the lake and dam were merely a retention pond and were not yet classified as a Class I Dam requiring notification to ODNR under R.C. 1521.062(K).

Once Mullins Bros. no longer owned property in the Landings Development, as a matter of law, it was no longer a member of the homeowners association. (Only property owners are members.) Accordingly, Mullins Bros. took steps to transfer the administration of the association to the homeowners. Following a meeting in 2008, all of the association's funds were transferred via check to "The Landings Property Owners Association, Inc." (Affidavit of Steve Mullins, attached to Mullins Bros. Motion for Summary Judgment, ¶19; **Exhibit A-7**.) The homeowners association continued to exist after that. Indeed, although the Long Defendants allege that Steve Mullins is still the statutory agent, George Bertko filed a Certificate of Continued Existence for the association on February 19, 2010, naming himself as the new statutory agent. (Certificate of Continued Existence, filed February 19, 2010, attached hereto as Exhibit A).¹ A simple property-record search shows that Mr. Bertko was an owner of Lot 725 in the Landings Phase VII development until he sold his home to Carol Didingar, current defendant, in 2010. (2006 Warranty Deed² from Schlabach Builders to Bertkos, and 2011 Warranty Deed³ from Bertkos to Didingar Trust, attached hereto as Exhibit B). Additionally, Cloyd Yough, acting as trustee for The Landings Property Association, Inc. filed an Amended Application for Real Property Tax Exemption for the parcel of land containing the Lake and Dam on October 26, 2011. (Yough Dep. at 60-61:21-4 and Exhibit 31).

¹ The Certificate of Continued Existence is a publicly available document which can be found at: <https://businesssearch.ohiosos.gov/?=businessDetails/1529613>

² The 2006 Warranty Deed is a publicly available record that can be found on the Knox County Recorder, Instrument No. 20060000638300, Book 1020, Pages 690-691, also available at: <https://knoxoh.compiled-technologies.com/Image.aspx?control=330050>.

³ The 2011 Warranty Deed is a publicly available record that can be found on the Knox County Recorder, Instrument No. 20110000741100, Book 1300, Pages 905-906, also available at: <https://knoxoh.compiled-technologies.com/Image.aspx?control=390950>.

The evidence does not support the Long Defendants' assertion that Steve Mullins acted improperly or that The Landings Property Owners Association, Inc. was not a properly formed and functioning entity. Mullins Bros. did what was required to set up the homeowners association and transfer the property to it in 2007. The Long Defendants have not shown that the evidence supports invalidation of the conveyance under any legal theory or makes Mullins Bros. responsible for the property it lawfully conveyed.

IV. Conclusion

The Long Defendants belated summary-judgment argument has no basis in law or fact. This Court should not invalidate or set aside the deed. The Court should find that Mullins Bros. is not the owner of the property, nor is it responsible for the lake or dam now upon it.

Respectfully submitted,

/s/ Kelli J. Amador

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Kelli J. Amador (0095550)

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Counsel for Defendant Mullins Bros., Ltd.

CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 17th day of May, 2024.

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The Landings Property Owners Association, Inc.
c/o George Bertko, Registered Agent
P.O. Box 336
Mount Vernon, OH 43050

Chad Taylor - submakersinc@gmail.com

/s/ Kelli J. Amador

Kelli J. Amador (009555)

EXHIBIT A



DATE	DOCUMENT ID	DESCRIPTION	FILING	EXPED	PENALTY	CERT	COPY
02/25/2010	201005500732	CERTIFICATE OF CONTINUED EXISTENCE (CCE)	25.00	.00	.00	.00	.00

Receipt

This is not a bill. Please do not remit payment.

THE LANDINGS PROPERTY OWNERS ASSOC
PO BOX 336
MOUNT VERNON, OH 43050

STATE OF OHIO CERTIFICATE

Ohio Secretary of State, Jennifer Brunner**1529613**

It is hereby certified that the Secretary of State of Ohio has custody of the business records for

THE LANDINGS PROPERTY OWNERS ASSOCIATION, INC.

and, that said business records show the filing and recording of:

Document(s):

CERTIFICATE OF CONTINUED EXISTENCE

Document No(s):

201005500732

United States of America
State of Ohio
Office of the Secretary of State

Witness my hand and the seal of the
Secretary of State at Columbus, Ohio
this 19th day of February, A.D. 2010.

Ohio Secretary of State



Ohio Secretary of State
Central Ohio: (614) 466-3910
Toll Fre: 1-877-SOS-FILE (1-877-767-3453)

STATEMENT OF CONTINUED EXISTENCE OF CORPORATION - NOT FOR PROFIT

The undersigned, a trustee, officer, or three members in good standing of the corporation named below, hereby verifies/verify that the corporation is still actively engaged in exercising its corporate privileges, and that:

1. The Charter Number is: **1529613**
2. The exact corporate name is:
THE LANDINGS PROPERTY OWNERS ASSOCIATION, INC.
3. The city, village or township in which its principal office is located is:
MOUNT VERNON
4. The county in which its principal office is located is: **KNOX**
5. The date of its incorporation is: **April 1, 2005**
6. The name of the current statutory agent is:

GEORGE BERTHO

7. The complete address of the current statutory agent is:

PO BOX 336

MOUNT VERNON OH. 43050

(P. O. Box addresses are not acceptable)

This document is signed by a trustee, corporate officer, or three members in good standing.

By: George S. Bertho

Note: If a new agent has been appointed on line 6 above, that agent must acknowledge his/her acceptance of such appointment below.

ACCEPTANCE OF APPOINTMENT

The undersigned, George BERTHO, named herein as the statutory agent for the corporation in line 2 of this statement, hereby acknowledges and accepts the appointment of statutory agent.

George Bertho

Signature of Statutory Agent

2010 FEB 19 PM 1:25

EXHIBIT B

WARRANTY DEED**KNOW ALL MEN BY THESE PRESENTS****THAT Schlabach Builders, Ltd. an Ohio Limited Liability Company**

of Knox County, State of Ohio, for valuable consideration paid, grant with general warranty covenants, to

George S. Bertko and Kathleen K. Bertko, husband and wife, the Grantees, for their joint lives, remainder to the survivor of them,Whose tax mailing address is: 60 Wildwood Lane West
The following real property: Mount Vernon, OH 43070

Situating in the City of Mount Vernon, County of Knox and State of Ohio: Being Lots 725, Phase VII of The Landings, more fully set forth in Plat Cabinet C, Page 24, as recorded in the Knox County Recorder's Office.

Permanent Parcel Number: 66-09675.150

Subject to Building and Development Restrictions listed in Deed Volume 935, Page 640, zoning restrictions, restrictive covenants, leases and easements of record, taxes and assessments which are a lien, rules and regulations and determinations by the Tax Map Department of the Knox County Engineer's Office and the Knox County Regional Planning Commission.

Taxes shall be prorated as of the date of delivery of this deed.

Prior Instrument Reference: Volume 990, Page 196

Executed 8th day of June, 2006.

Schlabach Builders, Ltd.

TRANSFERRED
SEE SEC. 319.54
SEC. 319.202 R.C. COMPLIED WITHRoy Schlabach
By: Roy Schlabach, Member

JUN 12 2006

MARGARET ANN KUHLE
KNOX COUNTY, OHIO
NO. 1397 BY [Signature]DESCRIPTION
APPROVED
JIM HENRY
KNOX COUNTY ENGINEER

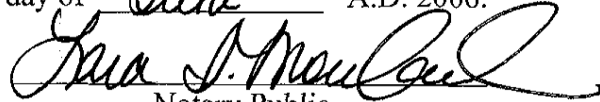
M+R

Knox County

Before me, a Notary Public in and for said County and State, personally appeared the above named Schlabach Builders, Ltd by Roy Schlabach, Member, who acknowledged that he did sign the foregoing instrument and that the same is the free act and deed of said limited liability company, by authority of statue, its articles of organization or its operating agreement, for the uses and purposes therein mentioned, and on oath he stated that he is authorized to execute this Deed and in fact executed the Deed on behalf of the said limited liability company.

In Testimony Whereof, I have hereunto set my hand and official seal, at Mount Vernon, Ohio

This 8th day of June A.D. 2006.


Notary Public

This instrument prepared by:
Robert L. Rauzi
MURRAY & RAUZI, Ltd.
305 East High Street
Mount Vernon, Ohio 43050
Telephone: (740) 397-7474



LARA I. MORELAND
Notary Public, State of Ohio
My Commission Expires: 04-18-07



Doc ID: 003086660002 Type: OFF
 Kind: DEED
 Recorded: 09/23/2011 at 12:33:57 PM
 Fee Amt: \$28.00 Page 1 of 2
 Knox Ohio
 John Lybarger County Recorder
 File# 2011-00007411

BK **1300** PG **905-906**

TRANSFERRED
 SEE SEC. 319.51, 319.17, 319.22
 SEC 319.202 R.C. COMPLIED WITH

SEP 23 2011

JONETTE CURRY
 KNOX COUNTY, OHIO
 NO. 1724 BY CD

DESCRIPTION
 APPROVED *JM*
 JIM HENRY
 KNOX COUNTY ENGINEER

M.R.E.K

WARRANTY DEED

KNOW ALL MEN BY THESE PRESENTS, THAT:

George S. Bertko and **Kathleen K. Bertko**, husband and wife, of Knox County, State of Ohio, for valuable consideration paid, grants with general warranty covenants to **Carol A. Didinger**, Trustee of the **Carol A. Didinger Trust**, dated November 3, 2004.

whose tax mailing address is 60 Wildwood Lane West, Mount Vernon, OH 43050,

the following REAL PROPERTY:

Permanent Parcel Number: 66-09675.150

Situated in the City of Mount Vernon, in the County of Knox and State of Ohio:
 Being Lot 725, Phase VIII of the Landings, more fully set forth in Plat Cabinet C,
 Page 24, as recorded in the Knox County Recorder's Office.

Prior Deed Reference: Volume 1020, Page 690, Knox County Deed Records.

Subject to Building and Development Restrictions listed in Deed Volume 935,
 Page 640, zoning restrictions, restrictive covenants, leases and easements of
 record, taxes and assessments which are a lien, rules and regulations and
 determinations by the Tax Map Office, Knox County, Ohio, Engineer's Office,
 and the Knox County, Ohio, Regional Planning Commission.

Executed this 22nd day of September, 2011.

George S. Bertko
 George S. Bertko

STATE OF OHIO)
) SS:
COUNTY OF KNOX)

The foregoing instrument was acknowledged before me this 22nd day of September, 2011, by George S. Bertko.



DONNA L. MATTHEWS
NOTARY PUBLIC, STATE OF OHIO
My Commission Expires
Nov. 11, 2012

Donna L. Matthews
NOTARY PUBLIC

Executed this 22nd day of September, 2011.

Kathleen K. Bertko
Kathleen K. Bertko

STATE OF OHIO)
) SS:
COUNTY OF KNOX)

The foregoing instrument was acknowledged before me this 22nd day of September, 2011, by Kathleen K. Bertko.

Donna L. Matthews
NOTARY PUBLIC

This instrument prepared by:
Robert L. Rauzi, Lawyer
MURRAY, RAUZI & KIDWELL, LTD.
305 East High Street
Mount Vernon, Ohio 43050
Telephone: (740) 97-7474



DONNA L. MATTHEWS
NOTARY PUBLIC, STATE OF OHIO
My Commission Expires
Nov. 11, 2012